

Bureau of Indian Standards (Hallmarking) Regulations, 2018

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Bureau of Indian Standards (Hallmarking) Regulations, 2018

UNION OF INDIA

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Bureau of Indian Standards (Hallmarking) Regulations, 2018

Rule BUREAU-OF-INDIAN-STANDARDS-HALLMARKING-REGULATIONS-2018 of 2018

Published on 14 June 2018

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Bureau of Indian Standards (Hallmarking) Regulations, 2018

Published vide Notification F. No. BS/11/05/2018, dated 14.6.2018

F. No. BS/11/05/2018. - In exercise of the powers conferred by section 39 read with sections 13 and 14 of the Bureau of Indian Standards Act, 2016 (

11 of 2016

), the Executive Committee of the Bureau of Indian Standards, with the previous approval of the Central Government, hereby makes the following regulations, namely:-

1.

Short title and commencement.

(1)

These regulations may be called the Bureau of Indian Standards (Hallmarking) Regulations, 2018.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these regulations, unless the context otherwise requires, -

(a)

"Act" means the Bureau of Indian Standards Act, 2016;

(b)

"carat" means the ratio between the mass of gold content and the total mass expressed in parts per twenty-four;

(c)

"fineness" means the ratio between the mass of precious metal content and the total mass expressed in parts per thousand;

(d)

"rules" means the Bureau of Indian Standards Rules, 2017;

(e)

"Schedule" means the Schedule annexed to these regulations.

(2)

The words and expressions used herein and not defined, but defined in the Act, shall have the same meaning as assigned to them in the Act.

Chapter I

Grant, Operation, Renewal and Cancellation of Certificate of Registration

3.

Application for certificate of registration.

(1)

A jeweller shall apply for grant of certificate of registration to sell precious metal articles notified under sub-section (1) of section 14 of the Act.

(2)

The application under sub-regulation (1) shall be made to the Bureau in Form-I, annexed to these regulations, along with the fee specified in the Schedule-I.

(3)

The application form shall be signed by the applicant or by any other person authorised in this regard.

(4)

The application shall be accompanied by self-certified copy of the following documents, namely:-

(a)

proof of establishment of the firm or company;

(b)

proof of the address of the premises;

(c)

proof of identity of the signatory;

(d)

map indicating location of the premises from the nearest landmark; and

(e)

proof in regard to annual turnover.

(5)

The application shall be rejected if it is not accompanied by requisite fee.

(6)

The application shall be acknowledged on its receipt.

(7)

If the documents submitted under sub regulation (4) are not in order, the Bureau may call for required document or any supplementary information, as the case may be, if required for the purpose of clarification.

(8)

If the document or clarification furnished by the applicant is found in order, the application shall be further processed for grant of a certificate of registration.

(9)

The application under sub-regulation (2) may be rejected by the Bureau if the documents are not found in order.

(10)

The applicant may furnish his reply with necessary documents and may request for hearing either in person or through a representative authorised by him within fourteen days from the date of receipt of the notice.

(11)

The decision of the Bureau with the grounds of rejection shall be communicated in writing to the applicant.

(12)

The application fee shall not be refundable in case of rejection of the application under sub-regulation (9).

4.

Grant of certificate of registration.

(1)

The Bureau may grant certificate of registration,-

(a)

if the application is found in order; and

(b)

on payment of registration fee specified in Schedule-I.

(2)

The certificate of registration shall be granted in Form-II annexed to these regulations and shall be valid for a period of five years.

(3)

The details of the certificate of registration shall be hosted on the website of the Bureau.

(4)

The certificate of registration shall be valid for the premises mentioned in the certificate of registration.

(5)

The certificate of registration shall be subject to terms and conditions specified in regulation 5.

5.

Terms and conditions of certificate of registration.

(1)

The registered jeweller shall be responsible for purity and fineness of the hallmarked precious metal articles sold by it.

(2)

The registered jeweller may sell hallmarked precious metal articles, which are marked with the identification mark of any other jeweller, provided evidence of purchase or authorisation in any other form is available with him.

(3)

The registered jeweller getting the article hallmarked shall be responsible for purity and fineness of such article.

(4)

The registered jeweler, who makes the sale shall be liable to pay compensation for any shortage in purity or fineness as per rules.

(5)

The registered jeweller shall inform the Bureau of any change in premises and management of the firm.

(6)

The registered jeweller shall get the precious metal articles hallmarked as per the relevant Indian Standard from an assaying and hallmarking centre recognised by the Bureau.

(7)

The registered jeweller shall submit the precious metal articles to the assaying and hallmarking centre with a request for hallmarking, in writing for each consignment and a copy of the each of the request shall be maintained by him.

(8)

While submitting the precious metal articles for assaying and hallmarking, the registered jeweller shall mention his name

and address, certificate of registration number, identification mark, type of article, number of article, declared purity of each article or group of articles and overall weight of consignment in each request, which shall be signed by an authorised representative of the jeweller with date.

(9)

The registered jeweller shall declare the name and signature of his representative who shall be authorised to submit request for hallmarking, to the assaying and hallmarking centre.

(10)

The registered jeweller shall pay hallmarking fee to the assaying and hallmarking centre as specified in Schedule III.

(11)

The bill or invoice of sale of hallmarked precious metal articles shall indicate separately description of each article, net weight of precious metal, purity in carat and fineness, and hallmarking charges.

(12)

In case of any amendment or revision of the standard, the Bureau shall give notice of thirty days to the registered jeweller before its implementation.

(13)

The registered jeweller shall maintain record of copies of request for hallmarking, invoice or bill issued by assaying and hallmarking centre, invoice or bill of sale of hallmarked articles and invoice or bill of purchase of hallmarked articles from jewellers, if any, for a period of five years or till the hallmarked articles are sold, whichever is longer.

(14)

The registered jeweller shall co-operate with the authorised representative of the Bureau in inspection of its outlet, in production of relevant records and drawal of sample during surveillance or for investigation of a complaint.

(15)

The registered jeweller shall display prominently in the sales outlet the original certificate of registration issued by the Bureau for sale of hallmarked articles and other display requirements as stipulated by the Bureau.

(16)

The Bureau may alter, during the validity of the certificate of registration, any terms and conditions of the certificate of registration by giving thirty days' notice to the registered jeweller.

(17)

The violation of terms and conditions, may lead to the cancellation of the certificate of registration.

6.

Renewal of certificate of registration.

(1)

The registered jeweller shall submit renewal application in Form-III annexed to these regulations to the Bureau along with fee as specified in Schedule-I before thirty days of the expiry of the validity of certificate of registration.

(2)

In case renewal application is received before the expiry of validity,-

(a)

the certificate of registration may be renewed for a period of five years; or

(b)

the decision on renewal of the certificate of registration may be kept under deferment up to three months, if certificate of registration is being considered for cancellation or non-renewal and the decision of deferment shall be informed to the registered jeweller with instructions to stop the sale of hallmarked precious metal articles and stop getting precious metal articles hallmarked.

7.

Cancellation or non-renewal of certificate of registration.

(1)

The Bureau may cancel or not renew a certificate of registration, if,-

(a)

any declaration made by the jeweller is found to be false or incorrect;

(b)

registered jeweller has violated any of the terms and conditions of the certificate of registration;

(c)
registered jeweller has sold or offered for sale of hallmarked precious metal article of purity or fineness less than that claimed or marked on the article;

(d)
registered jeweller has failed to co-operate with the authorised representative of the Bureau to enable him to discharge his duties during the visit for surveillance or investigation of a complaint;

(e)
registered jeweller is found indulging in any unfair practices amounting to misuse of hallmark.

(2)
Before cancellation or non-renewal of certificate of registration, the Bureau shall give notice to the registered jeweller of its intention to cancel or not renew the certificate of registration citing reasons for the same.

(3)
In case the notice is issued for cancellation or non-renewal of certificate of registration due to reasons given at clause (e) of sub-regulation (1), the registered jeweller shall be instructed to stop the sale of hallmarked precious metal articles and stop getting precious metal articles hallmarked forthwith.

(4)
On receipt of notice under sub-regulation (2), the registered jeweller may submit an explanation to the Bureau within fourteen days from the date of receipt of the notice.

(5)
When an explanation is submitted, the Bureau may consider the explanation and give a personal hearing to the registered jeweller or his authorised representative, as the case may be.

(6)
In the case of compounding of the offence, the certificate shall not be processed for cancellation.

(7)
If no explanation is submitted, the Bureau may cancel the certificate of registration on the expiry of period of the notice.

(8)
Where a certificate of registration has been cancelled or not renewed, the jeweller shall stop the sale of hallmarked precious metal articles and stop getting precious metal articles hallmarked from any assaying and hallmarking centre notwithstanding the pendency of appeal under section 34 of the Act.

(9)
In cases of cancellation or non-renewal due to reasons given in clause (e) of sub-regulation (1), the Bureau shall not accept an application for grant of certificate of registration before a cooling period of one year from the date of passing of such order.

(10)
The Bureau shall host the particulars of certificate of registrations which have been cancelled or not renewed, on its website.

(11)
The jeweller shall return the original certificate of registration document to the Bureau in the event of its surrender, cancellation or non-renewal and shall ensure defacing of the hallmark from the precious metal articles available in stock.

(12)
In the event of cancellation, non-renewal or the jeweller opting to surrender the certificate of registration, the jeweller shall forthwith destroy all publicity material such as handbills, pamphlets and letterheads, through which the jeweller claims to be the registered jeweller for selling hallmarked precious metal articles.

(13)
A registered jeweller, who has been convicted under the provisions of the Act, shall not be eligible to apply for certificate of registration for a cooling period of one year from the date of such conviction.

Chapter II

Grant, Operation, Renewal, Suspension and Cancellation of Recognition of Assaying and Hallmarking Centre

8.

Application for recognition.

(1)

Any assaying centre set up in accordance with a relevant Indian Standard may apply for grant of recognition to operate as assaying and hallmarking centre.

(2)

The application shall be made in the Form-IV annexed to these regulations to the Bureau along with the fee specified in Schedule-II accompanied by self-certified copy of the following documents, namely:-

(a)

proof of the establishment of the firm or company;

(b)

proof of the address of the premises;

(c)

proof of identity of the signatory;

(d)

map indicating location of the premises from the nearest landmark;

(e)

quality manual; and

(f)

affidavit cum undertaking in Form-V

(3)

The application shall be signed by the applicant or by any other person authorised in this regard.

(4)

The application shall be rejected if it is not accompanied by requisite fee.

(5)

The application shall be acknowledged after its receipt and recorded after its scrutiny, if found in order.

(6)

If the documents submitted under sub-regulation (2) are not in order, the Bureau may call for required documents or any supplementary information, as the case may be, if required for the purpose of clarification.

(7)

On examination, the Bureau may reject an application, if, -

(a)

the application is found to be incomplete or without relevant documents;

(b)

at any time during processing of application it is found that the assaying and hallmarking centre is indulging in any malpractice amounting to misuse of hallmark for which it is liable to be prosecuted under the Act;

(c)

the centre does not have the necessary infrastructure and competence as per the relevant Indian Standard for carrying out assaying and hallmarking of the precious metal articles;

(d)

the application is submitted before expiry of cooling period in case of cancellation or non-renewal of recognition as specified in sub-regulation (9) of regulation 13 or conviction under provisions of the Act as specified in sub-regulation (11).

(8)

Before rejecting any application under sub-regulation (7), the Bureau shall give a notice to the applicant citing the deficiencies therein.

(9)

The applicant may furnish his reply with necessary documents and may request for hearing either in person or through a representative authorised by him within fourteen days from the date of receipt of the notice.

(10)

The decision of the Bureau with the grounds of rejection shall be communicated in writing to the applicant.

(11)

An applicant or a person convicted under the provisions of the Act shall not be eligible to apply for a cooling period of one year from the date of such conviction.

(12)
The application fee shall not be refundable in case of rejection of the application under sub-regulation (7).

9.

Grant of recognition.

(1)

The Bureau shall grant recognition,-

(a)

on satisfaction that the Centre has the necessary infrastructure and competence as per the relevant standard for carrying out assaying and hallmarking of the precious metal articles; and

(b)

on payment of recognition fee and assessment fee as specified in Schedule-II.

(2)

The certificate of recognition shall be issued in Form-VI annexed to these regulation, giving scope of recognition.

(3)

The assaying and hallmarking centre may request for change in scope of recognition.

(4)

On receipt of an application under sub-regulation (3), the Bureau may examine the request, carry out assessment, as required for considering the change of scope.

(5)

The recognition granted under this regulation shall be valid for a period of three years.

(6)

The details of assaying and hallmarking centres recognised by the Bureau shall be hosted on its website.

(7)

The recognition of assaying and hallmarking centre shall be subject to the terms and conditions as provided in regulation 10.

10.

Terms and conditions of recognized of assaying and hallmarking centre.

(1)

The assaying and hallmarking centre shall be responsible for determination of purity and fineness of the precious metal articles hallmarked by it.

(2)

The assaying and hallmarking centre shall inform the Bureau whenever there is any change in the management, premises or name and address of the Centre.

(3)

The assaying and hallmarking centre shall inform the Bureau of any changes in machinery, equipment, assaying personnel, non-availability of certified reference materials or breakdown of any major equipment affecting sampling, assaying and hallmarking activities.

(4)

The assaying and hallmarking centre shall accept the jewellery for hallmarking as per the relevant Standard only from a certified jeweller with request for hallmarking in writing giving details as specified in sub-regulation (7) of regulation 5.

(5)

In case of any amendment or revision of the standard, the Bureau shall give notice of one month to the assaying and hallmarking centre before its implementation.

(6)

The testing and marking shall be carried out as per relevant Indian Standard using calibrated equipment and certified reference material.

(7)

The design of hallmark and particulars to be marked with it shall be as specified in the Schedule-III.

(8)

The assaying and hallmarking centre shall maintain records as specified by the Bureau including the records of request for hallmarking received from jewellers.

(9)

The assaying and hallmarking centre shall take hallmarking fee from jewellers as specified in Schedule-IV and issue bill or invoice for each consignment as per request for hallmarking received, to the jeweller.

(10)

The assaying and hallmarking centre shall deposit the hallmarking fee to the Bureau as specified in Schedule- IV.

(11)

The assaying and hallmarking centre shall furnish the details regarding the precious metal articles hallmarked as well as rejected, in number and weight on monthly and annual basis.

(12)

The assaying and hallmarking centre shall co-operate with the authorised representative of the Bureau for the purpose of conducting assessment, in production of relevant records and for inspection and testing of the precious metal articles available with the the centre.

(13)

The Bureau may alter any terms and conditions of the recognition during the period of the validity of the recognition by giving thirty day's notice to the assaying and hallmarking centre.

(14)

The violation of terms and conditions may lead to the cancellation of the recognition.

11.

Renewal of recognition.

(1)

The assaying and hallmarking centre shall submit application for renewal of recognition in Form-VII annexed to these regulations, along with fee as specified in Schedule-II, and self-certified copy of the following documents, namely:-

(a)

proof of the establishment of the firm or company;

(b)

proof of the address of the premises;

(c)

proof of identity of the signatory;

(d)

map indicating location of the premises from some nearest prominent landmark;

(e)

quality manual; and

(f)

affidavit cum undertaking in Form-V annexed to these regulations.

(2)

The application for renewal shall be submitted ninety days before the date of expiry of the validity of recognition

(3)

The Bureau, on receipt of an application for renewal under sub-regulation (1), may renew the recognition for a period of three years after satisfying that the centre continues to have the necessary infrastructure and competence as per the relevant Standard for carrying out assaying and hallmarking of the precious metal articles and also considering the past records of the applicant.

(4)

In case the assaying and hallmarking centre does not apply for renewal before the expiry of validity along with requisite fee, it shall cease to have right to use hallmark after the validity of recognition is over and in such case, the renewal of recognition may be deferred for a period of ninety days from the date of validity by the Bureau.

(5)

If, during the period of deferment of recognition, an application is made along with late fee of rupees five thousand, the requisite fee, specified in Schedule-II and required documents, the recognition may be renewed by the Bureau:

Provided that the assaying and hallmarking centre shall not have the right to use hallmark till recognition is renewed by the Bureau.

(6)

In case renewal application along with requisite fee and documents is not received within such period of deferment, the recognition shall stand expired.

(7)

The decision on renewal of the recognition may be kept under deferment up to six months from the date of its validity, if recognition is under suspension, or being considered for suspension, cancellation or non-renewal.

(8)

The decision of deferment shall be informed to the centre in writing with instructions to stop hallmarking of precious metal articles.

12.

Suspension of recognition.

(1)

If, at any time, there is difficulty in assaying and hallmarking of the precious metal articles or in the event of test equipment getting out of order or due to natural calamities or a lock out declared by the management; or directed by a competent court or statutory authority, the assaying and hallmarking centre shall inform it to the Bureau immediately.

(2)

As soon as the events which caused the suspension have been removed, the intimation of revocation of the suspension of operations shall be sent to the Bureau immediately.

(3)

If, at any time, the Bureau has sufficient evidence that the assaying and hallmarking may not be conforming to the Indian Standard, the assaying and hallmarking centre shall be directed to suspend its operation and such evidence may not be limited to, but may include one or more of the following, namely:-

(i)

non-conformity of hallmarked precious metal articles established after in-house or independent testing;

(ii)

non-implementation of the provision of the relevant Standard;

(iii)

non-availability of testing personnel and absence of alternate arrangements;

(iv)

relocation of assaying and hallmarking centre;

(v)

prolonged closure of assaying and hallmarking centre for more than three months;

(vi)

assaying and hallmarking on precious metal articles not included in the scope of the recognition;

(vii)

non-submission of monthly or yearly statement regarding hallmarking charges collected from certified jewellers;

(viii)

non-payment of marking fee to the Bureau within stipulated period.

(4)

The assaying and hallmarking centre whose recognition has been placed under suspension shall inform the Bureau about the compliance of its order.

(5)

On receipt of corrective actions, a special assessment, if required, may be carried out to verify the effectiveness of the corrective actions.

(6)

The Bureau shall revoke the suspension after satisfying itself that the assaying and hallmarking centre -

(a)

has taken necessary actions;

(b)

deposited assessment fee as specified in Schedule -II; and

(c)

has provided sufficient evidence to establish competence of the centre as per the relevant standard for assaying and

hallmarking of precious metal articles.

13.

Cancellation or non-renewal of recognition.

(1)

The Bureau may cancel or not renew the recognition of an assaying and hallmarking centre for any of the following reason, namely:-

(a)

any declaration made by the assaying and hallmarking centre is found to be false or incorrect;

(b)

assaying and hallmarking centre has violated any of the terms and conditions of the recognition;

(c)

articles marked with hallmark do not comply with the relevant Indian Standard;

(d)

assaying and hallmarking centre has failed to co-operate with the authorised representative of the Bureau during his visit for assessment or for investigating a complaint;

(e)

assaying and hallmarking centre is found indulging in any unfair practice such as hallmarking precious metal articles for non-certified jewellers, marking of articles with incomplete hallmark or hallmarking articles without carrying out testing or hallmarking precious metal article is found to have shortage of purity of more than forty parts per thousand;

(f)

assaying and hallmarking centre is found to be marking precious metal articles with hallmark during period of suspension;

(g)

assaying and hallmarking centre is under suspension for a period of one year;

(h)

assaying and hallmarking centre has not taken required corrective actions within stipulated time or in spite of taking corrective actions there is recurrence of similar discrepancies.

(2)

Before cancelling or non-renewal of the recognition, the Bureau shall give notice to the assaying and hallmarking centre of its intention to cancel or not to renew the recognition citing the reasons.

(3)

In case the notice is issued for cancellation due to reasons provided in clauses (d),(e) or (f) of sub-regulation (1) the centre shall be instructed to stop hallmarking of precious metal articles.

(4)

On receipt of notice under sub-regulation (2), the assaying and hallmarking centre may submit an explanation to the Bureau within fourteen days from the date of receipt of the notice.

(5)

The Bureau shall consider the explanation and give a personal hearing to the assaying and hallmarking centre or its authorised representative, if sought and the Bureau may consider the request for compounding, if made by the assaying and hallmarking centre as per the provisions of the Act.

(6)

In the case of compounding of the offence, the recognition shall not be processed for cancellation.

(7)

If no explanation is submitted, the Bureau may cancel the recognition on the expiry of period of the notice.

(8)

Where a recognition has been cancelled or not renewed, the assaying and hallmarking centre shall stop marking of precious metal articles with hallmark forthwith.

(9)

In case of cancellation or non-renewal due to reasons provided in clauses (e) or (f) of sub-regulation (1) the Bureau shall not accept application for grant of recognition before a cooling period of one year from the date of passing of such order.

(10)

When recognition has been suspended, cancelled, not renewed or expired, the Bureau shall host the particulars of the recognition so suspended, cancelled, not renewed or expired on its website.

(11)

The assaying and hallmarking centre shall return the original recognition document to the Bureau in the event of its surrender, non-renewal or cancellation.

(12)

In the event of cancellation, non-renewal or assaying and hallmarking centre opting to surrender the recognition, the centre shall forthwith destroy all publicity material such as handbills, pamphlets and letterheads, through which the assaying and hallmarking centre claims recognition from the Bureau.

Chapter- III Grant, Operation, Renewal and Cancellation of Licence for Refinery or Mint

14.

Application for licence to use hallmark.

(1)

Any manufacturer engaged in refining by aqua-regia or electrolytic process or minting of precious metals, as the case may be, shall apply for a grant of licence under these regulations.

(2)

The application under sub-regulation (1) shall be made in Form-VIII annexed to these regulations along with fee specified in Schedule-V.

(3)

The application shall be accompanied by self-certified copy of the following documents, namely:-

(a)

proof of the establishment of the firm or company;

(b)

proof of the address of the premises;

(c)

proof of identity of the signatory;

(d)

map indicating location of the premises from some nearest prominent landmark;

(e)

micro or small scale industry certificate, if applicable;

(f)

process flow chart of refining or minting, as applicable

(g)

design and weight of the bullion or coin, as applicable

(h)

list of manufacturing machinery in Form-IX annexed to these regulations;

(i)

list of test equipment with valid calibration in Form-X annexed to these regulations;

(j)

accreditation of the laboratory of refinery or mint by National Accreditation Board for Testing and Calibration Laboratories (NABL) or London Bullion Market Association (LBMA);

(k)

plant layout;

(l)

list of technical personnel;

(m)

list of certified reference material; and

(n)

test report of in-house testing.

(4)

The application form shall be signed by the applicant or by any other person authorised in this regard.

(5)

The application shall be rejected, if it is not accompanied by requisite fee.

(6)

The application shall be acknowledged after its receipt and recorded after scrutiny, if found in order.

(7)

The Bureau may call for any supplementary information or documentary evidence from the applicant in support of or to substantiate any statement made by him in his application.

(8)

The Bureau may reject an application, if,-

(a)

the application is found to be incomplete or without specified documents or does not fulfill the specified requirements.

(b)

at any time during processing of application it is found that the applicant is indulging in any malpractice amounting to misuse of hallmark for which it is liable to be prosecuted under the Act;

(c)

the applicant does not have the necessary infrastructure and competence as per the relevant Standard and for compliance to the provisions of scheme of testing and inspection;

(d)

the refined precious metal does not conform to relevant Standard;

(e)

the application is submitted before expiry of cooling period in case of cancellation or non-renewal of licence as specified in sub-regulation (9) of regulation 19 or conviction under provisions of the Act as specified in sub-regulation (12).

(9)

Before rejecting an application, the Bureau shall give notice to the applicant citing the deficiencies therein.

(10)

The applicant may furnish his reply with necessary documents and may request for hearing, either in person or through a representative authorised by him on his behalf within fourteen days from the receipt of the notice.

(11)

The decision of the Bureau with the grounds of rejection shall be communicated in writing to the applicant.

(12)

An applicant or a person convicted under the provisions of the Act shall not be eligible to apply for a cooling period of one year from the date of such conviction.

(13)

The application fee shall not be refundable in case of rejection of application under sub-regulation (8).

15.

Grant of licence

(1)

The Bureau shall grant licence,-

(a)

on satisfaction of the Bureau that the applicant has the necessary infrastructure and competence for manufacturing and testing of refined precious metal as per the relevant Indian Standard;

(b)

if the refined precious metal conform to the relevant Indian standard;

(c)

on payment of marking fee as specified in Schedule-V.

(2)

The applicant shall co-operate with the authorised representative of the Bureau to inspect the premises relating to office, manufacturing, testing, storage and to draw and test sample(s) for the purpose of verification under sub-regulation (1).

(3)

The licence shall be granted in Form-XI annexed to these regulations.

(4)

The licensee may request for change in scope of licence with fee as per Schedule -V.

(5)

The Bureau may examine the request, carry out inspection, as required for considering the change of scope and the revised scope shall be issued in Form XII annexed to these regulations.

(6)

The licence granted under this regulation shall be valid for a period of one year.

(7)

The details of all licences issued by the Bureau shall be hosted on its website.

(8)

The licence shall be subject to terms and conditions as provided in regulation 16.

16.

Terms and conditions of licence

(1)

The licensee shall be responsible for fineness of the hallmarked refined precious metal manufactured by it.

(2)

The licensee shall inform the Bureau whenever there is any change in the management, premises or name and address of the firm.

(3)

The licensee shall inform the Bureau of any changes in machinery, equipment, assaying personnel, nonavailability of certified reference materials or breakdown of any major equipment affecting sampling, assaying and hallmarking activities.

(4)

The licensee shall test the refined precious metal as per the scheme of testing and inspection as specified by the Bureau and accepted by the licensee.

(5)

The licensee shall hallmark refined precious metal that conforms to the relevant Standard.

(6)

The design of hallmark and particulars to be marked with it shall be as specified in the Schedule-III.

(7)

In case of any amendment or revision of the standard or the scheme of testing and inspection, the Bureau shall give notice of one month to the licensee before its implementation.

(8)

The licensee shall maintain records as specified by the Bureau from time to time.

(9)

The licensee shall furnish information regarding quantity manufactured, marked, sold, available in stock along with details of the consignees to the Bureau.

(10)

The licensee shall co-operate with the authorised representative of the Bureau for inspection and testing, in production of relevant records and drawl of samples.

(11)

The licensee shall be liable to pay compensation for any shortage in fineness as per rules.

(12)

The Bureau may alter any terms and conditions of the licence during the period of the validity of the licence by giving thirty days' notice to the licensee.

(13)

The violation of the above terms and conditions may lead to the cancellation of the licence.

17.

Renewal of licence.

(1)

The licensee shall submit application for renewal of licence in Form-XIII annexed to these regulations accompanied by fee as specified in Schedule-V.

(2)
The application for renewal shall be made before sixty days from the date of expiry of the licence.

(3)
The Bureau may, on receipt of application from a licensee, renew the licence for a maximum period of two years in Form-XIV annexed to these regulations.

(4)
The licence shall be renewed only after satisfaction of the Bureau that the licensee continues to have the necessary infrastructure and competence for manufacturing and testing of the refined precious metal as per the relevant standard and the scheme of testing and inspection and also considering the past records.

(5)
In the case the licensee does not apply for renewal before the expiry of validity of licence or deposit requisite fee or provide required details, it shall cease to have right to use hallmark after the validity of licence is over and in such case, the renewal of licence may be deferred for a period of ninety days from the date of validity by the Bureau.

(6)
If, during the period of deferment of licence, an application is made along with late fee of rupees five thousand, requisite fee specified in Schedule-V and required documents, the licence may be renewed by the Bureau: Provided that the licensee shall not have the right to use hallmark till licence is renewed by the Bureau.

(7)
In case renewal application along with requisite fee and documents is not received within the period of deferment, the licence shall stand expired.

(8)
The decision on renewal of the licence may be kept under deferment up to six months, if licence is under suspension, or being considered for suspension, cancellation or non-renewal.

(9)
The decision of deferment shall be informed to the licensee in writing with instructions to stop marking and sale of the refined precious metal with hallmark.

(10)
The licensee shall confirm to the Bureau about compliance of its order.

18. Suspension of licence.

(1)
If, at any time, there is difficulty in maintaining the conformity of the refined precious metal to the Standard or the testing equipment goes out of order or due to natural calamities or a lock out declared by the management; or, closure of operations directed by a competent court or statutory authority, the marking of the refined precious metal shall be stopped by the licensee under intimation to the Bureau.

(2)
The marking may be resumed as soon as the defects are removed and information of such resumption of the marking shall be sent to the Bureau immediately.

(3)
If, at any time, there is sufficient evidence that the refined precious metal carrying the hallmark may not be conforming to the relevant Standard, the Bureau may suspend the licence and shall direct to stop marking refined precious metal with hallmark and stop sale of hallmarked refined precious metal and such evidence may not be limited to, but may include one or more of the following, namely:-

(i)
non-conformity of the refined precious metal established after in-house or independent testing;

(ii)
non-implementation of the provision(s) of the scheme of testing and inspection;

(iii)
non-availability of testing personnel and absence of alternate arrangements;

(iv)
significant modification(s) in the process without prior evaluation and approval of the Bureau;

- (v)
relocation of manufacturing unit;
- (vi)
prolonged closure of manufacturing unit for more than three months;
- (vii)
marking non-conforming refined precious metal;
- (viii)
marking on refined precious metal of variety not included in the licence;
- (ix)
non-compliance of any instruction issued by the Bureau.

(4)
The licensee whose licence has been placed under suspension shall confirm to the Bureau about compliance of its order.

(5)
The licensee shall inform the corrective actions taken to the Bureau and on receipt of corrective actions, a special inspection, if required, may be carried out to verify the corrective actions.

(6)
The Bureau shall allow revocation of suspension after satisfying itself that the licensee-

- (a)
has taken necessary actions;
- (b)
deposited inspection fee as specified in Schedule-V;
- (c)
has provided sufficient evidence to establish competence for manufacturing and testing of refined precious metal as per relevant standard;
- (d)
has provided sufficient evidence to establish conformity of the refined precious metal to the relevant standard;

19.
Cancellation or non-renewal of licence.

(1)
The Bureau may cancel or not renew a licence for any of the following reason, namely:-

- (a)
any declaration made by the licensee is found to be false or incorrect;
- (b)
the licensee has violated any of the terms and conditions of the licence;
- (c)
the refined precious metal marked with hallmark does not comply with the standard;
- (d)
the licensee has failed to cooperate with the authorised representative of the Bureau during his visit for inspection or for investigating a complaint;
- (e)
the licensee is found to be using hallmark during period of suspension;
- (f)
the licensee is found marking hallmark on refined precious metal of variety not covered in the licence;
- (g)
the licence is under suspension for a period of one year;
- (h)
the licensee has not taken required corrective actions within stipulated time or in spite of taking corrective actions there is recurrence of similar discrepancies.

(2)
Before cancelling or not renewing a licence, the Bureau shall give notice to the licensee of its intention to cancel or not

renew the licence citing the reasons.

(3)

In case the notice is issued for cancellation or non-renewal due to reasons provided in clauses (e) or (f) of sub-regulation (1) the licensee shall be instructed to stop marking refined precious metal with the hallmark and stop sale of hallmarked refined precious metal.

(4)

On the receipt of notice under sub-regulation (2), the licensee may submit an explanation to the Bureau within fourteen days from the date of receipt of the notice and the licensee may further request for considering his case for compounding as per provisions of section 33 of the Act.

(5)

The Bureau shall consider the explanation submitted and give a personal hearing to the licensee or its authorised representative, if sought and the Bureau may consider the request for compounding, if made by the licensee as per the provisions of the Act.

(6)

In the case of compounding of offence, the licence shall not be processed for cancellation.

(7)

If no explanation is submitted, the Bureau may cancel the licence on the expiry of period of the notice.

(8)

Where a licence is cancelled or not renewed, the licensee shall stop the marking and sale of refined precious metal with hallmark notwithstanding the pendency of any appeal under section 34 of the Act.

(9)

In case of cancellation or non-renewal due to reasons provided in clauses (e) or (f) of sub-regulation (1) the Bureau shall not accept application for grant of licence before a cooling period of one year from the date of passing of such order.

(10)

When a licence is kept under suspension or cancelled or not renewed or expired, the Bureau shall host the particulars of such licence on its website.

(11)

The licensee shall return the original licence document to the Bureau in the event of its surrender, non-renewal or cancellation.

(12)

In the event of cancellation, non-renewal or the licensee opting to surrender the licence, the licensee shall forthwith destroy all publicity material such as handbills, pamphlets, and letter- heads through which he claims to be a licensee of the Bureau.

I

(refer sub-regulation (2) of regulation 3)

(refer clause (b) of sub-regulation (1) of regulation 4)

(refer sub-regulation (1) of regulation 6)

Fee for Grant and Renewal of Certificate of Registration

1. Application fee of Rs 2000/- is payable with each application.

2. Registration fee shall be payable as specified in Table-1. Table-1

Category

Annual turnover (in rupees)

Fee for five year (in rupees)

1

Above 100 crores

80,000

2

Above 25 crores & up to 100 crores

40,000

3

Above 5 crores & up to 25 crores

15,000

4

Less than 5 crores

7,500

3. If a jeweller has five or more outlets anywhere in India, he can opt for the certificate of registration at corporate level covering various retail outlets in one certificate and claim a discount of 10% in registration fee for each outlet.

4. In case of certificate of registration at corporate level, separate application fee shall be payable for each outlet.

5. An application fee of Rs. 2000/- is payable for every request made for inclusion or deletion of retail outlets.

6. Application fee only shall be payable by a jeweller holding a certificate for one precious metal and wanting to obtain certificate of registration for other precious metal.

7. In case, an outlet has certificate of registration for more than one precious metal, registration fee shall be payable for one metal only.

8. Applicable taxes as per prevalent rates shall be payable in addition to above.

9. If the registration fee is paid along with application fee in advance and application is rejected for any reason, the fee shall be refundable.

II

(refer sub-regulation (2) of regulation 8)

(refer sub-regulation (1) of regulation 11)

(refer clause (b) of sub-regulation (6) of regulation 12)

Fee for Grant and Renewal of Recognition of Assaying and Hallmarking Centre

Sl.No.

Fee

Amount in Rs.

1

Application Fee

10,000/-

2

Renewal Application Fee

5,000/-

3

Assessment Fee (per man day)

5,000/-

4

Recognition fee /Renewal of Recognition Fee (for three years)

60,000/-

Note:

(1)

Applicable taxes as per prevalent rates shall be payable in addition to above.

(2)

Assessment Fee shall be levied for all assessments on man day basis except surveillance assessment and for complaint investigation.

(3)

The travel and stay expenses of the auditors shall be borne by the Centre for all assessments except surveillance assessment and for complaint investigation.

III

(refer sub-regulation(7) of Regulation 10)

(refer sub-regulation(6) of Regulation 16)

Design of Hallmark

Sl. No.

Design of the Hallmark

Precious Metal Articles

Indian Standard

1.

XX K XXX

Gold Jewellery and artefacts

IS 1417 "Gold and gold Alloys,
Jewellery/Artefacts-Fineness and marking"

2.

XXX

Gold Bullion and Coins

IS 1417 "Gold and gold Alloys,
Jewellery/Artefacts- Fineness and marking"

3.

Silver XXX

Silver Jewellery and artefacts

IS 2112 "Silver and silver Alloys,
Jewellery/Artefacts- Fineness and marking"

4.

Silver XXX

Silver Bullion and Coins

IS 2112 "Silver and silver Alloys,
Jewellery/Artefacts- Fineness and marking"

Note:

1. XX in the above design indicate proportionate content of gold in carat.
2. XXX in above designs indicate proportionate content of gold or silver, as applicable, in parts per thousand.
3. Monogram of the hallmark and proportionate content shall be marked in a linear design.
4. Hallmark at Sl.No. 1 and 3 shall be marked by laser marking.
5. Hallmark at Sl.No.2 and 4 shall be marked by punching or embossing.

IV

(refer sub-regulation (10) of regulation 10)

Hallmarking Fee

1. (a) Hallmarking fee for gold articles payable to recognised Assaying and Hallmarking Centres by jewellers shall be:

(i)

Rs. 35/- per article; and

(ii)

Minimum fee for a consignment as Rs. 200/-.

(b)

The hallmarking fee to be levied by the Bureau from Assaying & Hallmarking Centre for gold articles shall be:

(i)

Rs. 3.50 per article; and

(ii)

Minimum fee for a consignment as Rs. 20/-.

2. (a) Hallmarking Fee for silver articles payable to recognised Assaying and Hallmarking Centres by jewellers shall be :

(i)

Rs. 25/- per article; and

(ii)

Minimum fee for a consignment as Rs. 150/-.

(b)

The hallmarking fee to be levied by the Bureau from Assaying & Hallmarking Centre for silver articles shall be:

(i)

Rs. 2.50 per article; and

(ii)

Minimum fee for a consignment Rs. 15/-.

Note: - applicable taxes as per prevalent rates shall be levied in addition to above.

V

(refer sub-regulation(2) of regulation 14)

(refer sub-regulation(1) of regulation 17)

(refer clause (c) of sub-regulation(1) of regulation 15)

(refer clause (b) of sub-regulation(6) of regulation 18)

Fee for Grant and Renewal of Licence to Refinery or Mint

S.No.

Fee

Amount in Rs.

1

Application Fee

1000/-

2

Licence fee

1000/-

3

Renewal Application Fee

1000/-

4

Inspection Fee (per man day)

7,000/-

5

Marking fee(For Refined Gold as per IS 1417)

For Large scale units - 48,000/- per year

(minimum)For MSME -38,400/- per year (minimum)Unit = 1 KgUnit

rate: Rs. 50 Per Kg

(1)

Applicable taxes as per prevalent rates shall be payable in addition to above.

(2)

Inspection fee shall be charged for all inspections on man day basis except surveillance inspection and for complaint investigation.

(3)

If application is received for a product other than gold for the first time, the marking fee shall be specified through notification of an amendment to this schedule.

(4)

The marking fee may be revised by the Bureau from time to time through notification of an amendment to this schedule. The licensee shall pay the dues arising out of marking fee revision.

(5)

The actual marking fee or minimum marking fee, whichever is higher shall be payable every year by the licensee.

Note 1: The actual marking fee for the first renewal shall be calculated by multiplying the unit rate with the quantity (units) marked during the first nine months.

Note 2: The actual marking fee for subsequent renewals shall be calculated on year-to-year basis from after the first nine months.

(6)

In case of inclusion of new varieties, an amount of rupees five thousand shall be chargeable per request.

Form I

(refer sub-regulation (2) of regulation 3)

Bureau of Indian Standards

Application for Grant of Certificate of Registration to Jewellers

For Sale of Hallmarked Articles

(Strike off whichever is not applicable)

1.

Name of Jeweller (firm/company) :

2.

(a) Address of Outlet with Pin Code, District and State:

Tel (With STD Code):

Fax : (With STD Code)

E mail:

(b)

Location along with Landmark :

3.

Type of Ownership:

Proprietorship / Partnership / Private Limited

Company / PSU

4.

Details of Management:

(Name of all Partners/Directors to be mentioned)

| Name

Designation (Proprietor/Partner/Director/CEO)

(i)

(ii)

(iii)

5.

Details of Contact Person:

Name:

Designation

Mobile:

e-mail:

6.

Certificate applied for:

Gold Jewellery/artefacts as per IS 1417 and/or

| Silver

Jewellery/artefacts

as per IS 2112

7.

(a) Any other BIS Certificate held:

Yes / No

| (b) If yes, give details: Certificate No:

IS No.:

Validity:

Product:

8.

Annual Turnover in Crores (attach proof) :

9.

If Application is for Certificate at Corporate level:

Yes/No

In case of Yes, details of outlets to be covered

to be given in format below (enclose separate sheet, as required)

{|

S.No.

Location of Outlet (State and City/Town)

Address of Outlet

Contact Person at Outlet (Name & Designation

Contact details at Outlet (Phone No., Email Id

etc.)

| -

| 10.

| Details of Previous Cancellation/Convictions, if
any, :

| -

| 11.

| Details of Payment: Demand draft / Net Banking /

Bank Challan (please refer to the fees applicable for jewellers)

Amount (in Rs.)

Name of Bank

Demand Draft No./UTR No./Bank Challan No.

Date

| -

| 12.

| I/We shall use the following identification mark

or logo on jewellery/artefact for the purpose of Hallmarking.

This identification mark shall be provided to the Assaying &

Hallmarking Centre when jewellery/artefact is offered for

Hallmarking. I/We, shall on our own, not apply the identification

mark, in any manner, on the hallmarked jewellery/artefact.

| -

| 13.

| I/We undertake that we shall strictly follow the
provisions of Bureau of Indian Standards Act, 2016, Rules, 2017,
and Hallmarking Regulations 2018 and guidelines for conformity
assessment scheme issued thereunder upon grant of Certificate by
Bureau of Indian Standards for sale of gold or silver hallmarked
articles as per IS 1417/2112.

| -

|

| Signature (Proprietor/Partner/Director)

| -

|

| Name

| -

| Date:

| Designation

| -

| Place:

| Seal

|}

Form II

(refer sub-regulation (2) of regulation 4)

Bureau of Indian Standards

Certificate of Registration for Selling Articles with Hallmark

Certificate No. : HM/C-

1. By virtue of the powers conferred on it by the Bureau of Indian Standards Act, 2016 (11 of 2016

), the Bureau hereby grants to/renews the certificate granted to (strike out as applicable)

M/s

Address of premises:

Certificate for using Hallmark set out in the first column of the Schedule here to, upon the article, set out in the second column of the said Schedule, and selling of hallmarked article from the sales outlet to which the Certificate is being granted to. The articles shall be hallmarked only by Assaying and Hallmarking centre recognised by the Bureau of Indian Standards (BIS) after verification of conformity to the Indian Standard as set out in the third column of the said Schedule.

Schedule 6

Hallmark

Article

Indian Standards

(1)

(2)

(3)

2. This Certificate shall operate in accordance with the provisions laid down in Bureau of Indian Standards Act, 2016 Bureau of Indian Standards Rules 2017, Bureau of Indian Standards Hallmarking Regulations, 2018 and guidelines for conformity assessment scheme issued thereunder.

3. This Certificate shall be valid from ----- to -----and may be renewed in accordance with the said Regulations.

Signed, Sealed and Dated this _____ day of _____ two thousand _____

for Bureau of Indian Standards

Name and Signature of Designated Authority

Form III

(refer sub-regulation (1) of regulation 6)

Bureau of Indian Standards

Application for Renewal of Certificate of Jeweller

Head, _____ Branch Office

Bureau of Indian Standards,

Dear Sir/Madam,

I/we, carrying on business

at _____ (Full

address of sales outlet) under the style of ??????????????

(Full name of individual or firm) apply for renewal of

Certificate No. HM/C _____ dated _____

granted by the Bureau under the Bureau of Indian Standards Act, 2016, and the Rules and Regulations framed thereunder, as amended from time to time, for a further period of five years, the terms and conditions being the same as stipulated in my/our previous application and the aforesaid certificate, and/or such other conditions as the Bureau may stipulate.

2.

Date of grant of certificate:

Valid upto:

3.

Name of Product :

IS No. :

4.

Details of sales of hallmarked jewellery/artefacts under the

certificate for the period covered: From Date of grant/renewal of certificate to 3 months before validity date i.e

from _____ to _____

(a) Jewellery/Artefact sent for Hallmarking:

(a) Qty. in No. of pcs

(b) Qty. in weight

(b) Sale of Hallmarked Jewellery/Artefact:

(a) Qty. in No. of pcs

(b) Qty. in weight

(c)

Name(s) and Addresses of A and H Centre(s) to which jewellery was sent for hallmarking during the period:

5.

I/We are enclosing herewith a UTR No. _____ dated _____ /
Bank Draft No. _____ dated _____ for Rs _____
drawn on _____ towards the following
dues:

(i)

Renewal application fee of Rs. _____

(ii)

Certification fee for five years of Rs. -----

(iii)

Applicable taxes @ ---%

(iv)

Previous dues (as per our notice) if any

(v)

Total amount Rs?????????..?????????.

6.

Renewal application dated this _____ day of
_____ Two thousand and _____

Signature

Name

Designation

For and on behalf of

Seal

Form IV

(refer sub-regulation (2) of regulation 8)

Application for Recognition of Assaying and Hallmarking Centre in accordance with IS 15820

1.

Name of Assaying and Hallmarking Centre and
Complete Address

1.1

Name of the Centre

Complete Address (clearly indicate prominent
landmark and attach location plan)

Telephone / FAX

Email

1.2

Complete address of the Registered Office (if
different from 1.1 above)

Telephone/FAX/Email

1.3

Type of Ownership

Proprietorship/Partnership/Limited

Company/Government./PSU

1.4

Provide Name of Prop., all partners and

Directors with designation

1.5

Premises of the Centre and its Legal Identity

Document authenticating premises of the centre
(enclose self-attested copy of document)

Document establishing legal identity of the
centre (enclose self-attested copy of document)

2.

Scope of Recognitionn

2.1

Scope of Recognition Applied for (specify
details as per guidelines)

Gold/Silver/Gold and Silver Both

3.

Name and Designation of Owner/Chief Executive of
the Applicant

3.1

Telephone/FAX/Email

3.2

Name and Designation of the person responsible
for the Quality System Management in the Centre

4.

Employees/Personnel

4.1

Total number of employees in the centre

4.2

Department-wise details with name, designation,
qualification, experience, training details, etc. (attach
separate sheet as per the following format)

Department

Name

Designation

Qualification

Experience

Training Details

Name of deputy, if any

5.

Test Equipment/Instruments and Test facilities

5.1

Clause wise list of test equipment/facilities
including consumables, water & electricity supply with back
up as per the following format (please attach separate sheet)

Sl. No.

IS No. & Clause Ref.

Method of Test (if and as applicable)

Test Facility (Equipment Ref. Material etc.)

Model/Type/Serial no.

1 and make

Range, Accuracy &

Least Count (if and as applicable)

Calibration (if and as applicable)

Remarks, If any

Range

Least Count

Validity

Traceability

6.

Centre Premises/Layout

6.1

Total space available and Space of Assay room

(in Sq feet)

6.2

Layout plan of the centre indicating testing

area, office etc. (attach Layout Plan)

7.

Centre's Quality Management System

7.1

Details of Quality Manual implemented in the

Assaying & Hallmarking Centre (Document No, Issue No and date) (copy of Quality manual to be enclosed)

8.

Proficiency Testing/Inter Laboratory Test

Comparison

8.1

Please provide details of your centre's

participation in proficiency testing/ Inter Laboratory test programme (during last three years).

9.

Insurance

9.1

Has professional Indemnity Insurance been taken?

If yes, please provide policy no., validity date and amount of insurance taken

Yes/No

9.2

Has Insurance for artefacts under process/stock

and high cost equipments been taken? If yes, please provide policy no., validity date and amount of insurance taken

Yes/No

10

Preparedness for Assessment

10.1

By which date will the centre be ready for assessment?

11.

Details of Previous Cancellation/Convictions, if

any

12.

Details of Payment (refer to the fee applicable for AHCs)

12.1

Amount

12.2

Name of the Bank

12.3

DD No./UTR No./Bank Challan No.

12.4

Date

13

Any other information which the centre may like to provide

Declaration

This is to declare that I have read and understood provisions of Bureau of Indian Standards Act, 2016, Bureau of Indian Standards Rules, 2017 and Bureau of Indian Standards (Hallmarking) Regulations 2018 and guidelines for conformity assessment scheme for Assaying & Hallmarking (A and H) Centre and undertake to abide by them.

Signature

Name

Designation (Proprietor/Partner/Director)

Date:

Seal

Place:

Form- V

(refer clause (f) sub-regulation (2) of regulation 8)

Affidavit cum undertaking to be submitted by Assaying & Hallmarking Centre for BIS Recognition

1. I/We (Name of A and H Centre)an Assaying & Hallmarking Centre (which expression shall include its heirs, and/or assigns) having its laboratory at address..... and hereby undertake that we shall strictly follow the provisions of Bureau of Indian Standards Act 2016, Bureau of Indian Standards Rules 2017, Bureau of Indian Standards (Hallmarking) Regulations 2018 and guidelines for conformity assessment scheme for Assaying and Hallmarking Centres, as amended from time to time.

2. I/We,....., Proprietor /Managing Partner, Chief Executive Officer representing..... M/s ,hereby declare that the A&H Centre has a legal identity and independent status. The A&H Centre has been established in accordance with the requirements of IS 15820 "General Requirements for Establishing and operation of Assaying and Hallmarking Centres" and shall continue to abide by requirements of this Indian Standard, as amended from time to time.

3. I/We agree and fully understand that under the Hallmarking Scheme of BIS, accurate determination of precious metal (gold or silver) content in jewellery or artefacts and marking of the BIS Hallmark on the jewellery or artefacts provided to it by only BIS certified jeweler, on chargeable basis is the responsibility of the assaying and hallmarking centre.

4. I/We agree to indemnify BIS for all claims/damages arising out of hallmarking of any gold or silver article due to shortage of purity that may be made against BIS by any person/consumer/association/ jeweller etc.

5. I/We shall use the BIS logo only with the words "BIS recognised A and H Centre" on documents such as letterhead, receipt, invoice, delivery challan, assay sheet, test - report of assay, certificate of hallmarking, if issued, and for publicity through print and/or electronic media.

6. I/We shall neither use its recognition in any manner so as to bring disrepute to BIS nor shall make any statement relevant to its recognition which may be considered misleading by BIS.

7. I/We shall not subcontract any of our activities including receiving, sampling, assaying and hallmarking to any other agency as specified in IS 15820.

8. The identification mark or logo as given below is owned by us. We have given this mark or logo for its application as a component of Hallmark on the jewellery or artefacts assayed and Hallmarked by us for only BIS certified jewelers. We shall not use any other Identification Mark or logo for Hallmarking. Prior permission of the Bureau shall be taken in case we wish to change the Mark registered with the Bureau. We shall be responsible for display of our mark or logo on such jewellery or artefacts.

9. I/We understand that the validity of recognition of an A and H Centre is for a period of three years subject to satisfactory performance based on assessment of its capability and competence by BIS. This affidavit shall remain in force until the recognition is cancelled by BIS. Any violation of the affidavit cum undertaking may lead to the cancellation of the Recognition.

10. I/We also declare that there has been no conviction of promoter(s) or any of their close relatives for any criminal offence in the last one year.

11. I/We also declare that none of the promoter(s) or any of their close relatives has/have been involved in any serious irregularity in the running of any other Assaying & Hallmarking Centre during the last one year.

12. I/We also declare that the promoter(s) of the A and H centre do not have any linkage with jewellery trade or manufacturing.

13. I/We hereby declare that the following jewellers holding BIS certificate are owned by my/our close relatives*.

Sl. No.

Name of the Proprietor/Partner(s) / Director(s)

of the A and H Centre

Name of the relative(s) owning jewellery firm

and their relationship with name in col 2

Name and address of the jeweller

BIS certificate No. of the jeweller

(1)

(2)

(3)

(4)

(5)

14. I/We declare that in case of any change in the list of jewellers as listed above, I/We shall immediately intimate BIS about such change.

15. I/We declare that my/our A and H Centre shall not accept any jewellery/artefact for hallmarking from any of the above mentioned jewellers.

16. I/We understand that in case the above declaration is found to be false by BIS at any stage, the recognition granted to my/our A and H Centre is liable to be canceled.

Signature(Proprietor/Partner/Director)

Name

Designation

Seal

Date

Place

Note: *Relative' with reference to any person, shall means anyone who is related to another, if -

(a)

they are members of a Hindu Undivided Family;

(b)

they are husband and wife; or

(c)

if he or she is related to another in the following manner, namely: -

(i)

Father including step-father.

(ii)

Mother including step-mother

(iii)

Son including the step-son

(iv)

Son's wife (v) Daughter

(vi)

Daughter's husband

(vii)

Brother including the step-brother

(viii)

Sister including the step-sister.

Form VI

(refer sub-regulation (2) of regulation 9)

Bureau of Indian Standards

Certificate of Recognition for Assaying and Hallmarking Centre

Recognition No. : HM/R-

1. By virtue of the powers conferred on it by the Bureau of Indian Standards Act, 2016 (11 of 2016

), the Bureau hereby grants recognition/ renews recognition granted (strike out as applicable) as per Indian Standard IS 15820 specifying 'General Requirements for Establishment and Operation of Assaying and Hallmarking Centres' to M/s

Address:

For using Hallmark set out in the first column of the Schedule here to, upon the article, set out in the second column of the said Schedule for marking of precious metal articles received from jewellers certified by the Bureau of Indian Standards. The articles shall be hallmarked by the Assaying and Hallmarking centre after verification of conformity to the Indian Standard as set out in the third column of the said Schedule. The scope of the recognition shall be as set out in the fourth column of the said Schedule.

Schedule 7

Hallmark

Article

Indian Standards

Scope of Recognition

(1)

(2)

(3)

(4)

2. This recognition shall operate in accordance with the provisions laid down in Bureau of Indian Standards Act, 2016 Bureau of Indian Standards Rules 2017, Bureau of Indian Standards (Hallmarking) Regulations 2018 & guidelines for Hallmarking Scheme issued thereunder.

3. This recognition shall be valid from _____ to _____ and may be renewed in accordance with the said Regulations.

Signed, Sealed and Dated this _____ day of _____ two thousand _____ for Bureau of Indian Standards

Name and Signature of Designated Authority

Form VII

(refer sub-regulation (1) of regulation 11)

Bureau of Indian Standards

Application for Renewal of Recognition of Assaying and Hallmarking Centre in accordance with IS 15820

(Strike-off whichever is not applicable)

1.

Name of Assaying and Hallmarking Centre and

Complete Address

1.1

Name of the Centre

Complete Address (clearly indicate prominent landmark and attach location plan)

Telephone/FAX/Email

1.2

Complete address of the Registered Office (if different from 1.1 above)

Telephone/FAX/Email

1.3

Type of Ownership

Proprietorship/Partnership/Limited

Company/Government./PSU

1.4

Premises of the Center and its Legal Identity

Document authenticating premises of the center in case of any change (otherwise confirm-no change)(enclose self-attested copy of document)

Document establishing legal identity of the center in case of nay change (otherwise confirm-no change)(enclose self-attested copy of document)

2.

Recognition

2.1.

Validity of the Recognition (applicable in case of renewal of recognition)

3.

Scope of Recognitionn

3.1

Existing Scope of Recognition (specify details as per guidelines)

Gold/Silver/Gold and Silver Both

3.2

Any change proposed in the scope of recognition. If yes, please indicate details.

Yes/No

4.

Management Structure of the Centre

Telephone/FAX/Email

4.2

Name and Designation of the person responsible for the Quality System Management in the Centre

5.

Employees/Personnel

5.1

Total number of employees in the centre

5.2

Department-wise details with name, designation, qualification, experience, training details, etc. (attach separate sheet as per the following format)

Department

Name

Designation

Qualification

Experience

Training Details

Name of deputy, if any

6.

Test Equipment/Instruments and Test facilities

5.1

Clause wise list of test equipment/facilities

including consumables, water & electricity supply with back up as per the following format (please attach separate sheet)

Sl. No.

IS No. & Clause Ref.

Method of Test (if and as applicable)

Test Facility (Equipment Ref. Material etc.)

Model/Type/Serial no.

and make

Range, Accuracy &

Least Count (if and as applicable)

Calibration (if and as applicable

Remarks, If any

Range

Least Count

Validity

Traceability

7.

Centre Premises/Layout

7.1

Total space available and Space of Assay room
(in Sq feet)

7.2

Layout plan of the centre indicating testing
area, office etc. (attach Layout Plan)

8.

Centre's Quality Management System

8.1

Details of Quality Manual implemented in the
Assaying & Hallmarking Centre (Document No, Issue No and
date) (copy of Quality manual to be enclosed, if revised)

8.2

Is your centre accredited as per IS/ISO/IEC 17025 yes, date of validity of accreditation

9

Details of Payment (refer to the fee applicable for AHCs)

9.1

Amount

9.2

Name of the Bank

Yes/No

9.3

DD No./UTR No./Bank Challan No.

Yes/No

9.4

Date

10

Any other information which the centre may like to provide

Declaration. - This is to declare that I have read and understood provisions of Bureau of Indian Standards Act, 2016, Bureau of Indian Standards Rules 2017 and Bureau of Indian Standards (Hallmarking) Regulations 2018 and guidelines for conformity assessment scheme for Assaying and Hallmarking (A and H) Centre and undertake to abide by them.

Signature

Name

Designation (Proprietor/Partner/Director)

Date:

Seal

Place:

Form-VIII

(refer sub-regulation (2) of regulation 14)

Bureau of Indian Standards

Application for Grant of Licence to use the Hallmark

1.

Full Name of Firm :

2.

(a) Office Address :

with Pin Code, District and State

Tel :

Fax :

E mail:

(With STD Code)

(With STD Code)

(b) Factory Address :

with Pin Code, District and State

Tel:

Fax :

E mail:

(With STD Code)

(With STD Code)

3.

Correspondence Address: Office/Factory

4.

Details of Management:

Name

Designation

(i)

(ii)

(iii)

5.

Details of Quality Control Personnel and

Assayer:

Name

Designation

(i)

(ii)

(iii)

6.

Details of Contact Person:

Name:

Mobile:

e-mail:

7.

Details of Firm :Large /MSME:

8.

Licence applied for: This application is being made to use the BIS Hallmark on:

Product

IS/Part/Sec./Year

Variety to be covered

9.

Units of Production

Present Installed capacity

Qty.

value

10.

(a) Any other BIS Licence held:

Yes / No

(b) If yes, give details: Licence No:

Product:

IS No.:

11.

Details of Previous Cancellation/Convictions, if any, :

12.

Details of Payment:

Demand draft/Net Banking/Bank Challan

(Please refer to the fees applicable for jewellers)

Amount (in Rs.)

Name of Bank

Demand draft No. /UTR No. / Bank Challan No.

Date

13. I/We undertake that we shall strictly follow the provisions of Bureau of Indian Standards Act, 2016 Bureau of Indian Standards Rules 2017, Bureau of Indian Standards (Hallmarking) Regulations 2018 and guidelines for conformity assessment scheme issued thereunder upon grant of licence by BIS.

Signature

(Proprietor/Partner/Director)

Name

Designation

Seal of Firm

Date:

Place:

Form-IX

(refer clause (h) of sub-regulation (3) of regulation 14)

Declaration regarding Manufacturing Machinery

No entry to be crossed

1. Application/Licence No:

2. Name/Address

SI No.

Machinery

Make/Identification No.

Production capacity per day, if applicable

Number

Remark

Note: Attach extra sheet, if required

I hereby declare that

the machinery details of which given above are available with us

I also declare that I

will send prior intimation to BIS whenever any machinery is not available due to any reason.

Signature of Firm?s

Representative _____

Name

Designation

Date

I have verified the

availability of the above mentioned machinery during my inspection.

Sig. of BIS I.O.

Name

Designation

Date of verification

Form X

(refer clause (i) of sub-regulation (3) of regulation 14)

Declaration regarding Test Equipment

No entry to be crossed

1. Application/Licence No:

2. Name/Address

Sl. No.

Test Equipment/Chemicals and Identification

Numbers (Where applicable)

Least Count & Range (Where applicable)

Valid Calibration (Where required) Yes/No

Tests Used in with Clause Reference

Remarks (Indicate number of Equipment)

Note: Attach extra sheet, if required

I hereby declare that the testing equipments details of which given above are available with us

I also declare that I will send prior intimation to BIS whenever any testing equipment is not available due to any reason.

Signature of Firm?s

Representative _____

Name

Designation

Date

I have verified the

availability of the above mentioned testing equipment during my inspection.

Sig. of BIS I.O.

Name

Designation

Date of verification

Form-XI

(refer sub-regulation (3) of regulation 15)

Bureau of Indian Standards

Licence for the use of Hallmark

Licence No. HM/L -

By virtue of the power conferred on it by the Bureau of Indian Standards Act, 2016 (11 of 2016

) the Bureau hereby grants licence to

M/s

(hereinafter called 'the Licensee) this Licence to use the Hallmark set out in the first column of the Schedule hereto, upon or in respect of the varieties set out in the third column of the said Schedule which is manufactured in accordance with/conforms to the related Indian Standard(s) referred to in the second column of the said Schedule as from time to time amended or revised. The marking fee shall be as specified in the fourth column of the said schedule.

Schedule 8

Hallmark (1)

Indian Standard (2)

Scope of Licence (3)

Marking Fee (4)

Rs. ____ per unit for

the ____ units, with a minimum marking fee of ` ____/- during

an operative period of one year Unit - _____

Minimum marking fee for one operative year

payable in advance which will be carried over to next renewal(s)

2. This Licence shall operate in accordance with the provisions laid down in Bureau of Indian Standards Act, 2016, Bureau of Indian Standards Rules, 2017, Bureau of Indian Standards Hallmarking Regulations, 2018 and guidelines for conformity assessment scheme issued thereunder.

3. This Certificate shall be valid from ----- to -----and may be renewed in accordance with the said Regulations.

Signed, Sealed and Dated this day of month of year

for Bureau of Indian Standards

Name and Signature of Designated Authority

Form XII

(refer sub-regulation (5) of regulation 15)

Bureau of Indian Standards

Attachment to Licence No. HM/L-

HM/L-

Name of the Licensee with the Factory Address

Name of the Product

Indian Standard No.

Endorsement No. Dated

The following addition/deletion of variety/varieties has (have) been approved by the Bureau with effect from

Consequent upon the above changes, the revised scope of licence in Column (3) of the table in the schedule of the licence is amended as follows:

Other conditions of the licence remain the same.

Signature of Designated Authority

(Name of Designated Authority)

Form - XIII

(refer sub-regulation (1) of regulation 17)

Application for Renewal of Licence

Head Branch Office

Bureau of Indian Standards

Dear Sir/Madam,

I/we, carrying on business at

.....
.....
(Full factory and office address) apply for renewal of Licence
No.HM/Lgranted by the Bureau under
Bureau of Indian Standards Act, 2016, and the Rules and
Regulations framed thereunder, as amended from time to time, for
a further period from to
....., the conditions being the same
as stipulated in the aforesaid licence and amended from time to
time.

2.

Details of production of goods bearing BIS
Hallmark effected under the licence are given in the report of
performance (Annex II) placed overleaf duly authenticated by
CEO/authorised signatory of our company.

3.

I/We are enclosing herewith Receipt

No._____dated _____ for _____ towards the
following dues:

(i)

Renewal application fee

Rs.

(ii)

Annual Licence fee ` per year rate

Rs. per year rate

(iii)

Marking fee calculated on unit-rate basis

(item 3 of the Report overleaf) or Minimum

Marking Fee, whichever is higher

(iv)

Previous dues/Other fee (as per BIS notice) if
any.

(v)

Total amount Rs.

Signature

Date

Name

Designation

Seal of Firm

For and on behalf of

Annexure to Form - XIII

Report of Performance

(Period to be covered by the Report being
..... to ??.....)

Name of Product

Indian Standard No.

Licence No. ? HM/L?

1.

Total production of the article(s)

2.

Production covered with BIS hallmark and its approximate value

2.1

Quantity _____

2.2

Value(Rs.) _____

3.

Calculation of marking fee:

3.1

Unit

3.2

Marking-Fee per unit

3.3

Marking fee obtained by multiplying unit rates as at 3.2 with quantity as at 2.1

3.4

Minimum Marking Fee

4.

Quantity not covered with BIS Hallmark, if any, and the reasons for such non-coverage

5.

Names and addresses of all purchasers of BIS certified goods including Union/State Government Ministry/Department/Undertaking etc. (if applicable)

6.

Month-wise Production statement for the period mentioned

Note : Attach separate sheet, if required

Form - XIV

(refer sub-regulation (3) of regulation 17)Bureau of Indian StandardsAttachment to Licence No. HM/L-
HM/L-

Name of the Licensee with the Factory Address

Name of the Product

Indian Standard No.

Endorsement No. Dated

Whereas, the licence was valid upto,

*And, whereas the renewal was deferred till and licensee was not allowed to use or apply the Standard Mark from to (*Strike out, if not applicable),

Now, consequent upon renewal, the validity of the licence given in the schedule of the original licence/endorsement No. has been extended from to Other conditions of the licence remain the same.

Signature of Designated Authority(Name of Designated Authority)

Related AI tags, queries and research notes

Translation